MODULE II

CONCEPTS OF ETHICS

1. To introduce the concept of virtue
2. To explain Plato's concept of 'Cardinal Virtues'
3. To evaluate Aristotle's notion of virtue
4. To introduce subject matter of virtue ethics
5. To introduce the term 'Rights and duties'
6. To explain 'Rights and Duties'

2.1 VIRTUE ETHICS

2.1.1 INTRODUCTION

The question that whether virtue can be taught has been concern of Plato, virtue itself is a form of knowledge, then the question arises who is qualified to teach it. In Plato's day it was the function of sophist to teach the ruling class. It has been seen that no prominent persons are unable to pass virtue to their own sons. Virtue is not based on knowledge but only on true belief. Virtue should come from divine inspiration not from neither from education nor nature.

Socrates, Plato believed that a well-ordered society can only be founded upon the virtue of its citizens. It was from all terms and concepts of contemporaries that they developed their ideas. The virtues were connected with achievement of happiness (eudaimonia) regarding what constitutes eudaimonia is a question which confronted Aristotle. There is a view to an end in all practical action. It is man's function which determines the supreme end. The distinguishing characteristic of man's function is exercising the faculty of the soul in conformity with reason. If a person is capable to achieve this then he can reach the supreme good. The irrational part of the soul should be taken up by the higher intellect(reason).In Aristotle's vision in addition to virtue for a happy life there is a need for external goods.

The two broad types in to which virtue is classified are the rational part and the sensitive part: intellectual and moral virtue. Just like lack of anything or excess of anything is considered harmful, similarly in the case of morality the same saying goes. It is through right actions that moral virtue is strengthened. Moral actions in the right measure is a meritorious action. It is through the measured management of one's fears that one becomes courageous is the particular situation which governs the virtuous act.

It is the stable acquired dispositions which is termed virtue by Aristotle. It is through the interplay of nature, habit and education that virtue is developed in man. Even the objective of rhetoric was obtained by taking ethics as a means. In order for the speaker to have persuasive power, he should be trustworthy in his approach. Aristotle considers that an effective speaker need only to appear to possess the virtues to facilitate persuasion. Greatest hope of the state lies in good education of children.

If look through the history of philosophy, ethics was dominated by the concept of virtue. The terms and concepts of the contemporaries were used by Plato and Aristotle to formulate their ideas, it was a well-known notion at that time that a well-ordered society was possible only through the virtue of its citizens. The virtues were connected to the achievement of happiness (eudaimonia). Both Aristotle and Plato held that virtue was not a means to achieve happiness, but rather exercise of virtue itself constituted happiness. Aristotle and Plato were speaking of different kinds of independent virtues, the cardinal virtues were described in Plato's republic(Book 4, 426-43). The interconnection of these virtues was a subject of introspection by many philosophers. Plato was in support of 'unity of virtues' argument. While Aristotle saw the virtues as separate held the view that it was interconnected but not in the strong sense as Plato had suggested.

The book by Aristotle titled Nichomachean ethics is of prominent importance when we discuss virtue. Its influence can be seen all throughout the middle Ages and the premodern period. In all practical action man always has a view to an end. Aristotle states that one we strive for is for its own sake. It is the supreme good(eudaemonia).

Exercising the faculties of the soul in conformity with reason is a distinguishing characteristic of man. A good man does this well, doing this is virtue, which is the supreme good. For this to happen the rational part of the soul should rule the lower irrational part of the soul.

Aristotle also states that in addition to the internal aspects, for a happy life there is requirement of external goods, exercising virtue would be impeded without them. Habituation and training have a great role in acquisition of virtue. It is only by measured management of fears that a person becomes courageous. It only possible through the guidance of reason. It not constantly running away from danger, and thoughtlessly throwing oneself into it, both of these is not virtue.

What is virtue is defined by the situation in which the person acts. One should feel the right emotions or act in the right way, at the right time, towards the right people, and so on. Plutarch did not consider character to be the result of temperament. It can be seen since outer circumstances as well as individual rational choice have their roles it is not an interplay between innate and acquired dispositions.

Tacitus's Tiberius deliberately chooses wrong in spite knowing what is right. Aristotle considered rhetoric to be a part of ethics, by achieving the objective of rhetoric using ethics as the means. Trustworthy character of the person participating in rhetoric is a requirement to persuade. In Aristotle's rhetoric in order to facilitate persuasion it is only required by the character to appear to possess the virtues. The question whether he really is virtuous is irrelevant. Some writers insist for the orator to be virtuous.

Virtue ethics saw continuous changes throughout antiquity and the Middle Ages. The theory of degrees of virtue developed fits well with Christianity and hierarchical view of the world. The importance of such ideas could be found in the study of thoughts of Saint Simon. The unity of virtue developed by Saint Augustine fits well with Christian platonic outlook. He considered love to be the supreme virtue without which all other virtues seemed to be in vain. He considered man to be continuously ascending towards light.

Looking in to the historical shifts,in the greek tradition virtue and reason are intertwined,while in the medieval philosophy virtues were reframed within divine law.The post renaissance saw the secularisation of ethics the focus shifted to universal moral law rather than character.

Virtue is not good nature. It is not an innate good disposition which is natural. It is an acquired disposition due to the habit of controlling and regulation impulses and instincts by reason. Duty leads to virtue through habit.

The nature of virtue:- 'Virtue", says Aristotle, "is a permanent state of mind, formed with the concurrence of the will and based open an ideal of what is best in actual life - an ideal fixed by reason" virtue is permanent acquired disposition in harmony with the moral law. It is settled habit of willing in conformity with the moral law. It consists in living habitually in the universe of right actions. It is a quality of character, determined by the idea of the

highest good of the self as a whole. Excellence of character is expressed in the performance of particular acts which are duties. Virtue lives in the performance of duties. Thus virtue and duty are two aspects of the same thing. Virtue is the excellence of the inner character; duty is the external expression of good character.

2.1.2 Socratic Ethics -

Socrates was intimately acquainted with Athenian intellectual and cultural life, he was mightily unimpressed with both. He had little interest in the philosophical ideas of his predecessors. He disputed the alleged wisdom and moral authority of the poets. He expressed deep misgivings about the truth of Homeric theology. He lamented the lack of virtue in public and private life, and he had a low opinion of the Sophists who professed to teach it. He had an even lower opinion of the politicians, whom he denounced as panderers to public taste more interested in beautifying the city than in improving the citizenry.

Socrates had initially tried to refute the oracle by interrogating numerous people with a reputation for wisdom including the politicians, the poets, and the craftsmen in hopes of finding someone wiser than himself. But he had failed. This disappointing venture had convinced him that the god was right: no one is wiser than Socrates. He concluded that he had been given a divine mission to spend his life philosophizing, examining himself and others, convicting them of moral ignorance, and persuading them that they are in the same deplorable epistemic condition as he. At the age of seventy,he was accused of not believing in the gods of the city, of introducing new gods, and of corrupting the youth. Socrates was executed in 399 BC. Since Socrates wrote nothing, our knowledge of him is based wholly on the testimony of others such as Aristophanes, Xenophon, and Plato.

Socrates did not believe we are born with blank minds that our teachers, parents, and peers fill with information. He believed souls have the hidden knowledge of Truth, Beauty, and Goodness. Just as a midwife aids a pregnant mother in giving birth, Socrates helped pregnant souls give birth to the knowledge hidden within them.

Socrates ethics is just the opposite of Sophists dictum that man is the measure of all things. The core of Socratic ethics is the concept of virtue. According to Socrates knowledge is virtue and ignorance is vice. He again says that as virtue is knowledge, virtue can be taught and virtue is one. Knowledge and virtue are one in the sense that the wise man who knows what is right and will always do what is right. In other words, no one does evil knowingly.

For Socrates, "virtue is knowledge". If a person fully understood the nature of the good; he could not fail to pursue it. On the other hand, if person did not fully understand the nature of the good, he could not be moral except by accident. Knowledge is virtue. Ignorance is vice. To be temperate without knowledge is to be by a kind of intemperance. To be courageous without knowledge is to be courageous by a kind of cowardice. Thus knowledge constitutes the essence of virtue according to Socrates. A person never knowingly commits wrong. This view is wrong. First, if virtue consists in the knowledge of the good, and if vice consists in the ignorance of it, then a person is not accountable for his wrong actions, because they are due to his ignorance, and because only voluntary actions involving the knowledge of the good are objects of moral judgement.

Secondly, a person often knows what is right and yet does what is wrong. Knowledge of the good does not always lead to the choice of the good. Knowledge and action are very often a variance with each other. The will may go against reason under the inducement of pleasure. Thus it is wrong to hold that no person commits a wrong action voluntarily or knowingly. Therefore, knowledge does not constitute virtue, though it is an indispensable element of it. Virtue depends upon the knowledge of the good and a habit of willing the good.

2.1.3 Plato: Cardinal Virtues

The philosophy of Plato is known as theory of Forms/Ideas. According to Plato, over and above the world of sense perception, there is a transcendent world of ideas/forms. The transcendent world is more real than our everyday world. Plato's theory of ideas is based on realism. Plato is searching for true knowledge in contrast to mere opinion. His dialectical method includes both epistemological and ontological method. Against the Sophists Plato stresses the distinction between knowledge and opinion. Socrates has already developed the doctrine of concepts. Plato says that knowledge(episteme) which is different from opinion (doxa) is the knowledge of true reality. In order to know a thing, it is necessary and sufficient to have the concept of that thing. One of the feature of the concept is that it is universal. For Plato, the universal concepts such as green, beauty, humanity are not merely subjective concepts but they express objective essence. They are not made by us, but we discover them. Each group of things having a common name or a common nature has a corresponding objective essence which Plato called Forms/Idea.

Plato's ethics is known as eudemonism, an ethical doctrine that characterizes the value of life in terms of happiness. Plato's philosophic thinking is an inquiry about the good and beautiful. He says that the highest good (summum bonum) is happiness. Plato's ethics is eudemonistic in sense that it is directed towards the attainment of man's highest good. This highest good of man may be said to be true development of man's personality as a rational and moral being, the right cultivation of his soul, the general harmonious wellbeing of life. Plato held that happiness is the result of the pursuit of virtue which is seen as a harmony and order of the soul. He seems to follow the Socratic identification of virtue with knowledge.

Cardinal virtues are the fundamental virtues on which the other virtues are based. Plato recognised four cardinal virtues: Wisdom, Courage, Temperance, and Justice.

1. Wisdom is the special virtue of the ruling class. It is deliberative and directive and indispensable for wise government. Wisdom is the virtue of the rational part of the soul. Wisdom is an all-embracing virtue. It is moral insight into our duties in a concrete situation and performing them. It is practical wisdom or prudence in a inner sense, which is implied in all moral actions.

2. Courage or fortitude is the power of resisting the fear of pain and the temptation of pleasure. It is the special virtue of the fighting class. Courage is the virtue of the emotional part of the soul. Courage is a self-regarding virtue, which bear directly on the life of an individual. It is the power of the will to resist the fear or pain.

3. Temperance or moderation is the special virtue of the traders. Temperance is the obedience of the desires to reason. It is also a self-regarding virtue. Temperance is the power of the will to resist the allurements of pleasure. It is self- restraint or self-control. It is steadfastness of will in choosing higher values and rejecting lower bodily values.

4. Justice includes them all. It is realised when the rules governs wisely, the soldiers fight bravely, and the craftsmen and traders work with energy and thrift. Justice is impartiality to all in the face of personal prejudice, preference or self-interest. It comprehends all social virtues.

These are all of the cardinal virtues of an individual according to Plato. Plato's cardinal virtue may be accepted as the basis and adapted to the requirements of the modern society. This is Mackenzie's view. The cardinal virtues may be taken in a wider sense. Wisdom should include care, foresight, prudence and decisiveness of choice. Courage should include both valour and fortitude. Valour is active courage which forgoes ahead and braves danger and pain. Fortitude is passive courage which endures inevitable sufferings without wavering. Temperance includes

the resistance to the allurements of pleasures-sensual or intellectual-which interfere with course our chosen career. Justice is the performance of social duties. It should include honesty, fidelity, benevolence, love, courtesy, cheerfulness, and good humour. Impartiality precedes benevolence. These are the social virtues. All virtues are the form of practical wisdom. Thus Mackenzie shows how Plato's cardinal virtues can be adapted to the requirements of the modern society.

2.1.4 ARISTOTLE'S CLASSIFICATION OF VIRTUES

Along with Socrates and Plato, Aristotle also considers virtues to be central to a well lived life. Although Aristotle regards the ethical virtues (Justice,courage,temperance and so on) as complex rational, emotional and social skills but he rejects Plato's idea that to be completely virtuous one must acquire,through training in the sciences,mathematics,and philosophy,an understanding of what goodness is. Aristotle states that in order to live well what is needed is a proper appreciation of the way in which such goods as friendship,pleasure,virtue,honor and wealth fit together as a whole. It is through proper upbringing and habits that we can develop an understanding regarding which course of action is the best to apply to particular cases. This should also be supported by reason. So it is not solely by learning general rules that one can acquire practical wisdom. In order to enable us put our general understanding of well being in to practice that are suitable for each occasion we must acquire through practice deliberative, emotional and social skills.

"Virtue", says Aristotle, "is the habit of choosing the relative mean, as it is determined by reason, and as the man of practical wisdom would determine it." Aristotle recognises two classes of virtues' viz., (1) intellectual virtue and (2) moral virtue. The former belongs to the rational soul, and includes theoretical knowledge and practical knowledge. The latter belongs to the irrational but conscious part of the soul, and consists in subordinating emotions and desires to reason. Temperance is a moral virtue, and consists in control of desire for pleasure by reason. Courage also is a moral virtue and consists in control of the emotion of fear by reason. Moral virtues are habits of deliberated choice for the realisation of the good. They are the mean between two extremes.

Virtue ethicists reject the idea that there is any simple formula for determining how to act. At the beginning of the Nicomachean Ethics, **Aristotle cautions that we must not expect the same degree of precision in all areas of study, and implies that morality lacks rules and methods of thinking that are as precise as those, say, in mathematics. When it comes to morality, we must be content with general principles that allow for exceptions**.

The task of the moral philosopher is to define the stature of our moral duty. How should a moral person act in a given situation is a crucial moral question. There are certain character traits and conditions which needs to be examined for human life to flourish. Virtue ethicist recommends that it is not based upon a theory of moral duty that our duty is defined rather it is by reference to the ideals of good life and good person that our duty is defined.

Virtue ethics is a moral philosophy that emphasizes the cultivation of good character traits (virtues) rather than focusing solely on rules or consequences. It asks not "What should I do?" but "What kind of person should I be?"

Core Idea of Virtue Ethics

- **Focus on character:** Virtue ethics prioritizes the development of moral character over adherence to duties (deontology) or outcomes (consequentialism).
- **Aristotelian roots:** Aristotle argued that virtues are habits developed through practice, leading to a balanced and flourishing life (eudaemonia).
- **Practical guidance:** Instead of rigid rules, virtue ethics advises: *"Act as a virtuous person would act in your situation."*

- **Contrast with other theories:**
    - **Deontology:** Focuses on duty and rules.
    - **Consequentialism:** Focuses on outcomes and utility.
    - **Virtue ethics:** Focuses on the moral agent's character.

2.1.5 Right action according to Virtue ethicist -

2.1.5.1 Virtue ethics is person rather than action based: It looks at the virtue or moral character of the person carrying out an action, rather than at ethical duties and rules, or the consequences of particular actions. Virtue ethics not only deals with the rightness or wrongness of individual actions, it provides guidance as to the sort of characteristics and behaviours a good person will seek to achieve.

In that way, virtue ethics is concerned with the whole of a person's life, rather than particular episodes or actions. A good person is someone who lives virtuously - who possesses and lives the virtues

According to a virtue ethicist right action is understood by what a virtuous person would do in a particular situation. An act is morally right just because it is one that a virtuous person, acting in character, would do in that situation.

It is not hard and fast rule which determine what a virtue ethicist should do. It is claimed right when the act is done a person of virtue. This person who sets the example is called the moral exemplar. But sometimes the advice will be too general hence we need specific moral rules. This set of rules can be specified by a virtue ethicist. It says how to act according to situation and avoid vices. In certain instances where we have to convince someone who has a different moral outlook from ours it will be difficult if they have skewed moral vision. It shows that some people are always blind to correct moral standards.

2.1.5.2 Complexity in decision making

It is of significance if a virtue ethicist could identify a simple rule or method that could be applied in a particular situation. Any minimally intelligent person can apply it according to situation. In *Nichomachean* ethics Aristotle states that we must not expect the same degree of precision for all areas of study, for example mathematics require more precision. In morality we must be content with general principles that allow for exceptions.

There is requirement of emotional maturity and sound judgement to solve the messy area of decision making. Though there are moral rules that are specified by the virtue ethicists but it may not be possible to apply there rules as in case of geometry. Since we have to look in to the context and need to have a sensitive outlook, strict obedience may lead us to error. But each person's moral view have their own stature, even if the objective foundations are questioned.

2.1.5.3 Moral Understanding

It not knowing a bunch of facts that virtue ethicist mean by moral understanding. If it was the case then a child prodigy might itself be enough to solve problems like marital dispute, difficult co-workers or helping some one recover from addictions.

Though moral understanding is a species of practical wisdom, it is not like repairing a car or help playing a musical instrument, here there is understanding of facts; it is much more than that. Moral wisdom requires a lot of training. It requires experience, reflection and emotional maturity. There is a wide knowledge required like the ability to read people, familiar with sorts of problem that people fall in to, the personal issues that prevent us from flourishing, to learn quickly from social cues this kind of knowledge cannot be got only from books.

There is great role of emotions in moral understanding. It is through compassion that we lend help to another person; the feeling of guilt reveals moral fault. It is through these feelings that we see things others miss.

2.1.5.4 Importance of moral education

According to Aristotle it is through training experience and practise that moral understanding can be gained. Even if the person is kinder and generous, without wisdom he may not be able act at the right time in the appropriate way.

Aristotle held that it is matter of our moral luck that a person becomes virtuous or not. Our upbringing has a great role to play in whether we become virtuous or not. It requires right sort of environment and teachers for a person to become virtuous, which means virtue is not inborn. By having moral education, a person born in vice can transform his character.

2.2 RIGHTS AND DUTIES

2.2.1 INTRODUCTION -

Rights are moral claims of individuals recognised by society. Duties are moral debts or obligations of individuals recognised by society. According to the Oxford Dictionary, 'a right is a justifiable claim on legal or moral grounds to have or obtain something or to act in a certain way'. Rights reside in some individuals; they have rights to certain things which are necessary for their self realisation. Duties are moral obligations, on the part of other individuals, to respect those rights. The individuals also having certain rights are under moral obligation to use them well for the common good. Rights and duties are ultimately based upon the same moral laws and relations. The society grants certain rights to its individual members for their own good and the good of the society. A man has no right to anything by himself. The society concedes certain rights to him, which are conducive to the social good. A person cannot claim anything for himself alone apart from the society. Moral rights of the individuals are protected by social conscience or public opinion. They are not necessarily enforced by the state like legal rights. Moral rights are conceded to individuals by the society for their self-realization. They are indispensable for the realization of the highest good and common good.

Rights and duties are correlative to each other. Duties are moral obligations. Every right brings an obligation with it. When one man has a right, other men are under moral obligation to respect it, and he himself is under moral obligation to use it for the common good. Moral obligation is different from legal obligation. The former cannot be enforced by the state, while the latter can Moral obligation depends upon the approval of public opinion. Take, for instance, the right of property. An individual has been granted this right for the common good. So not only other persons are under moral obligation to respect his right, but he himself is under moral obligation to use it for the common good. Thus rights and duties are correlative to each other. We have a right to the means that are necessary for our self-realization and for the highest good of the society of which we are members. We are under moral obligation to use them in the best way for the highest good of the society.

Rights and duties are correlative to each other, because they are reciprocal relation between individuals in a changing society. A society changes in different times under different conditions. So rights and duties also change. New occasions create new rights and duties.

A right is a justified claim that an individual or a group can make on others or on the state. Rights carry the recognition of society as common claims necessary for the development of

the individual. According to scholars rights can only be meaningfully exercised within a society, because a right always implies a corresponding duty on someone else.

2.2.2 Theories of rights -

There are numerous theories of rights which explain the nature, origin and meaning of rights.

Following are some of them -

a) Natural rights

Natural rights do not depend on the law or customs of any particular goverment,which makes them universal,fundamental and inalienable. These rights are thought to flow from human nature and reason rather than from any legislature. It means natural law was thought to exist before any actual political system natural rights are valid whether or not a ruler or assembly recognized them.

According to John Locke people possess rights to life, liberty and property that no government can take away. Several scholars regard natural rights as imaginary, arguing that rights are products of social living and have no existence outside the recognition granted by society. The theory of natural rights has been advocated mainly by Thomas Hobbes (Leviathan, 1651), John Locke (Two Treatises on Government, 1690) and J.J. Rousseau.

b) Legal rights

The rights bestowed on a person by a particular legal system are called legal rights. It is based upon the societies customs, laws, statutes or the actions of its legislature. Since human beings create them, human beings can also modify, restrain or repeal them. If somebody's legal right is violated they can approach court and seek a remedy. Hence legal right connects itself with the broader concept of positive law, the body of rules actually laid down and enforced by a recognized authority. Here state is the primary source of all rights and there is no inherent rights in man. In this view rights are not endowed by nature instead it is produced and maintained by the state. The supporters' membership in the state grants man the right to life. Rights are created by and preserved by the state. This theory's proponents include Bentham, Holland, and Austin. Bentham believes that only those rights that are formulated or defined in the state constitution should be recognized, and that those rights that are not formulated or defined in the constitution should not be recognized.

According to legal theorists rights are granted by the state,regarding rights as a claim which the force of the state grants to the people.

Let us look in to groups to which legal rights can be classified -

1. Civil rights - These rights protect personal freedom security, such as the right to life and protection from unlawful arrest.

2.Political rights - this right enables citizens to take part in governance, including the right to vote and to contest elections.

3.Economic rights -This right is related to work, property and livelihood.

c) Social Welfare Theories of Right-

The advocates of the social welfare theory of rights states that rights are the conditions of social welfare. So requirement here is 'what is socially useful and socially desirable'. According to this theory rights are the creation of the society in as much as they are based on the consideration of common welfare: rights are the conditions of social good which means that claims not in conformity with the general welfare, and therefore, not recognized by the community do not become our rights.

The social welfare theory of rights posits that rights are not inherent or natural, but are fundamentally creations of society designed to promote the collective good and general well-being. Under this framework, the state recognizes only those rights that maximize social utility and contribute to the community's progress The main proponents of Social Welfare Theory are Jeremy Bentham and John Stuart Mill.

d) Marxist theory of right –

In the Marxist conception , a socialist state having the proletarian law would protect and promote the interests/rights of the working class. The socialist state being a classless society protects the rights of all people living in it.

Hence the socialist state being an instrument of social,political and economic change, would seek to establish socialism which will be based on the principle of ‘from each to his ability to each according to his work’, the system of rights for all would follow this pattern: economic rights (work, social security) first, followed by social rights (education) and political rights (franchise rights).

e) Historical theories of rights -

The historical theory of rights, also called the prescriptive theory, regards the state as the product of a long historical process. According to this view rights grow from traditions and customs. According to Burke, people have right over anything that they exercise or enjoy uninterruptedly over a long passage of time. It means every right is based on the force of long observance

In this conception of rights, the adherents of the view states that rights are the result of historical growth. This theory posits that rights are not abstract gifts of nature, nor are they simply invented by the state. Instead, rights are the product of long-standing customs, traditions, and unbroken social practices that gradually harden into legitimate claims and societal expectations over generations.

2.2.3 Fundamental rights of man

1. **Right to live**- The first right of man is the right to live. Self-realisation is the highest good, which requires the continuance of life for its realisation. The right to live is the primary right. The sacredness of life should be recognised.

The right to life brings a moral obligation to treat our own life and that of others as a sacred thing. We should not hinder or destroy our own life. We should not take the life of any other person. We should further our own life and that of others. He who takes the life of another may legitimately be deprived of his own life. But capital punishment is condemned at present.

2. **Right of freedom**- The next right is that of freedom. Self-realisation is the highest good. It is realised by a person's will. So he should be free to exercise his will in order to realise his supreme end. He should not coerced by anybody. He should not be a slave to anybody. Freedom means restricted freedom. Absolute and unrestricted freedom amounts to licence. In a well ordered community an individual should be allowed to realise his supreme end by the free exercise of his will in so far as it is consistent with the maintenance of social order.

3. **Right of property**- The right of property necessarily follows from the right of freedom. Self-realisation is the highest good. It can be realised by a person if he is allowed to love, work, and freely exercise his will. Freedom of the will can be effectively exercised by an individual, if he is allowed to use some property earned by him freely. Personality and property go together. Hence personality can be realised only through the free use of some property. The state is the custodian of the 'personal' rights and the 'real' rights of the individual. Real rights are rights of property. Property is the expression of personality. Rights of property are essentially personal. That is Hegel's view.

4. **Right to work-** the right to work or employment follows from the right to live. If a person does not get employment, he cannot earn his livelihood. A modern welfare state should ensure the full employment of every citizen, because unemployment or under-employment deprives his of the opportunity for self-realisation. Right to employment should be recognised by every welfare state.

5. **Right of education**- the next right is the right of education. Here right and obligation are closely connected with each other. Every person has a right to have the best education he is capable to receiving. He is under moral obligation to receive the best education according to his capacity. In a well-developed society person ought to be give the maximum opportunity to unfold his potentialities to the best advantage and contribute his share to the general good.

6. **Right of contract**- the right to enter into a contract and fulfil it is another important right. The right of property gives rise to the right of contract. A person has the control over his property; his free will created it; it is a part of him. Hence it follows that he can possess it, use or exchange it as he thinks it proper. Thus the right of contract necessarily arises out of the right of property.

2.2.4 DUTIES

Definite rights bring definite obligations along with them. Such moral obligations or duties may be expressed in the form of commandments. Just as there is a right corresponding to every duty, so there is a duty corresponding to every right. Rights and duties are correlative to each other. All duties may be deduced from the fundamental duty that every person ought to realise his rational self. The following duties should be observed by every individual.

1. **Respect for life**- Our first duty is to respect life in ourselves and in others. We should not commit suicide or kill others. “Thou shall not kill”. This is the first commandment. We should take care of our own.We should take care of our own life. We should not injure the life or physical well being of other persons.

2. **Respect for freedom and personality**- Our second duty is to respect the freedom of ourselves and others. We should not interfere with the freedom of other person. This duty may be expressed in the forms: “Treat every human being as a person or an end, and never as means”. Hegel’s moral maxim is: “Be a person and respect others as persons”.

3. **Respect for property**- The next commandment is: “Thou shalt not steal”. We should not appropriate the property of others, and we should not misuse our own property. We should respect the right of property; we should have regard for our own property and that of others.

4. **Respect for truth**- We should speak the truth. We should keep our promises and fulfil our contracts. We should say what we mean. We should confirm our actions to our words: and we should confirm our words to our thoughts. Truth means harmony between thoughts and words, and harmony between words and actions.

5. **Respect for the society and the state**- We should have respect for social institutions. The stability of the social order is an indispensable condition of the moral progress of individual. So we should not unnecessarily interfere with any social institution. For instance we should not try to destroy the family or disturb and disintegrate the society. We should maintain the social system to which we belong. We should not revolt against the State and produce chaos.

6. **Respect for world harmony**- we should cherish faith in harmony and human unity. We should cultivate fellow feelings and brotherhood for all persons as members of the human society irrespective of colour, race, religion, nation or sex. We should have faith in human progress, and try our best to contribute to it to the best of our unity.

2.2.5 Let us look in to the conception of duty according to different theorists-

1. **Deontological theory of duties –**

Deontology is an ethical theory that determines morality based on fixed rules, obligations, and duties.The deontological theory of duties (or **deontology**) asserts that actions are morally right if they align with inherent rules or duties, regardless of their consequences. Originating from the Greek word *deon* (duty), it contrasts sharply with consequentialism, which judges actions by their outcomes.

In Kant's view, as we will see, right action is ultimately a rational action. As an ethics of duty, Kant believes that ethics consists of commands about what we ought to do. The word "imperative" in his categorical imperative means a command or order. However, unlike most other commands, which usually come from some authority, these commands come from within, from our own reason.

2. **Utilitarian theory of duties -**

The utilitarian theory of duties posits that an individual's moral obligations are entirely determined by the consequences of their actions. Rather than following rigid, abstract rules, your duty is to perform actions that maximize overall happiness, well-being, or utility for the greatest number of people affected. According to consequentialist theory, Duties are not intrinsic; they are derived solely from the outcomes they produce. An act or rule is a duty only if it leads to the best possible overall result.

3. **Ethical intuitionism -**

W.D Ross's ethical intuitionism is a pluralist, non-naturalist moral theory proposing that we have multiple, self-evident prima facie duties. Rather than relying on a single absolute rule, we intuitively grasp these baseline moral obligations, weighing them in specific situations to determine our actual duty.

4. **Virtue Ethics (Aristotle)**

   In Aristotles conception**,d**uty is not a strict rulebook but a natural outflow of living an excellent, virtuous life. Rather than asking "What is my rule-bound duty?", a virtue ethicist asks "What would a virtuous person do in this situation?"

2.2.6 DUTIES -CONFLICT BETWEEN HIGHER AND LOWER SELF

The human nature is constituted by two elements or factors - reason and sensibility- the higher or the rational self and the lower or the passional self.The concepts of the higher self and lower self represent two distinct aspects of human nature:

1. **Higher Self (Rational Self)**:
    - The higher self is associated with reason, rationality, and the pursuit of universal and enduring goals.
    - It supplies the idea of an end that is indirect, remote, and higher, focusing on the universal good rather than personal pleasure.
    - The higher self strives for moral development, self-discipline, and the realization of the supreme end of life.
    - It acts upon inclinations, restrains and controls them, forming permanent desires, habits, thoughts, and actions.
    - The higher self is the source of moral principles and duty, guiding individuals to act ethically and choose the "right end" over immediate gratification.
2. **Lower Self (Passional Self)**:
    - The lower self is driven by impulses, inclinations, and appetites that seek immediate personal pleasure or happiness.
    - It represents the sensuous and instinctive nature of humans, which often conflicts with the higher self.
    - The lower self is focused on particular, immediate ends that are self-centered and may lack consideration for universal or long-term consequences.

Comparison:

- The higher self is rational, idealistic, and concerned with universal good, while the lower self is impulsive, sensuous, and focused on personal gratification.
- The higher self seeks to harmonize and control the lower self, aiming for moral perfection and self-consistency.
- The conflict between the higher and lower selves is central to the development of the sense of duty and moral growth. Duty arises when the higher self points to a supreme end that opposes the immediate desires of the lower self, requiring effort and self-restraint to follow the rightful path.

The concept of duty, emphasise its connection to human nature and societal roles. It highlights that duty is unsuitable for describing divine nature, as God inherently desires only what is good and acts spontaneously without conflict. In human life, duty arises from the conflict between the higher rational self and the lower passional self, and the sphere of duty exists as long as this conflict persists. The authority of duty stems from the total self's ability to regulate desires and inclinations, with Kant describing duty as a categorical imperative that prioritizes the ideal over immediate inclinations. The social character of duties is also explored, noting that rights and duties are interconnected and both are rooted in the supreme end of human life. Duties do not solely arise from rights but also from social institutions and relationships, reflecting the essential perfection of human beings.

Duties do not solely arise from rights but also from social institutions and relationships formed through individual actions. According to Dewey, concrete duties stem from one's social position or function, which involves a commitment to specific actions based on established connections with others. For example, a parent, doctor, lawyer, or other professionals have unique duties tied to their societal roles. These roles represent implicit or explicit contracts that define their responsibilities and guide their actions within society.

The concept of duty, involves choosing the supreme end of life as guided by reason over actions driven by habits and inclinations. It highlights that duty also encompasses socially established modes of action, which are shaped by relationships and positions within society. These socially determined duties align with the supreme end of human life, which is the collective good for all. The text acknowledges two perspectives on the nature of duties: one focusing on individual rationality and the other on social relationships. It suggests reconciling these views by recognizing that duties arise from the ideal rational self, which harmonizes natural inclinations with societal influences to achieve moral development and the supreme end of life.

2.2.7 Capturing the essence of different accounts of the source of moral obligation—Kant's rigoristic rationalism , intuitionist appeal to conscience and eudemonistic view

2.2.7.1 Kant's Rigoristic View

Kant's view is considered "rigoristic" because he entirely removes empirical motives,such as sympathy, love, or personal happiness,from the source of moral worth. For an action to have true moral value, it must be done strictly out of respect for duty.

- **Dual constitution of man**: Rational (higher self) vs. sensuous (lower self).
- **Conflict of ends**:
    - Sensuous nature → particular, immediate, pleasure-driven ends.
    - Rational nature → universal, remote, morally significant ends.
- **Principle of reason**: Demands suppression or checking of appetites.
- **Definition of duty**: Acting *from reverence for duty*, not merely in accordance with it.
- **Moral worth**:
    - Action has moral import only if done *from duty for duty's sake*.
    - Example: Honest dealer vs. prudent dealer—same outward act, but only the honest dealer acts from duty.
- **Source of duty**: Reason itself; moral law springs from rational nature.

2.2.7.2 Intuitionistic View

From an intuitionist perspective, moral obligation originates from self-evident, objective moral truths that we perceive directly. It does not come from calculating consequences, following social contracts, or divine commands, but is instead an inherent feature of reality we grasp through rational reflection

- **Conflict of springs of action**: Not reason vs. inclination, but higher vs. lower motives.
- **Role of conscience**:
    - A unique, inexplicable faculty that discerns moral worth.
    - Determines superiority/inferiority of competing springs of action.
- **Definition of duty**: Choosing the higher spring of action over the lower.
- **Source of duty**: Conscience, which directly perceives moral obligation.

This comparison shows how Kant grounds morality in universal rational law, while intuitionists rely on an immediate moral sense. Kant's framework is more formal and systematic, whereas intuitionism emphasizes the lived experience of conscience in moral conflict.

2.2.7.3 Eudemonistic View

In the eudemonistic view, the source of moral obligation is rooted in human nature's ultimate goal: flourishing, well-being, or the good life (known in Greek as *eudaimonia*). Rather than obeying external rules, we are morally obligated to act virtuously because doing so is the only way to achieve our proper function and true fulfilment.

- **Critique of Kant**:
    - Kant made duty purely formal, antagonistic to inclinations, leaving morality "empty" and detached from real life.
- **Critique of Hedonism**:
    - Hedonism reduced duty to external coercion (sanctions), with no organic relation to the self.
- **Reconciliation**:
    - The true source of duty is the **Ideal or Rational Self**.
    - Duty arises from the rational self striving to harmonize natural inclinations with reason, gradually perfecting human nature.
- **Role of society and education**:
    - Family and social influences are essential aids in moral development.
    - They help inclinations align with rational ideals.
- **Conflict as growth**:
    - Moral life is a continual struggle between the actual self and the ideal self.
    - Keeping this struggle alive is fundamental to moral progress.

2.2.8 IMMANUEL KANT'S DISTINCTION BETWEEN RIGHTS AND DUTIES

Kant distinguishes between rights (*Recht*), which concern external freedom and justice, and duties (*Pflichten*), which concern moral obligations grounded in reason. Rights protect independence and require a legal system, while duties guide personal morality through perfect and imperfect obligations.

2.2.8.1 Kant on Rights (Recht)

- **Definition**: For Kant, *Recht* refers to the system of laws and justice that guarantees each person's external freedom.
- **Core Principle**: Every person has a **right to independence from others' arbitrary control**.
- **State and Law**: Independence can only be secured through a **system of rights enforced by the state**, meaning individuals must become cooperating citizens.
- **Natural vs. Positive Law**: Kant distinguishes between **natural rights** (inherent to human freedom) and **positive law** (laws enacted by states). Both are necessary to secure justice.
- **Examples**:
    - Right to private property.
    - Right to freedom of choice and action.
    - Right to legal protection against coercion.

2.2.8.2 Kant on Duties (Pflichten)

Kant's moral philosophy classifies duties based on two distinctions:

1. **Duties to oneself vs. duties to others**.
2. **Perfect duties vs. imperfect duties**.

- **Perfect duties** are absolute and binding (e.g., honesty, non-violence).
- **Imperfect duties** allow flexibility in how they are fulfilled (e.g., generosity, self-improvement).

2.2.8.3 Relationship Between Rights and Duties

- **Rights** concern external relations and require enforcement by law.
- **Duties** concern internal morality and are guided by the categorical imperative.
- **Interplay**: Rights protect the sphere in which individuals can act freely, while duties guide how they ought to act within that sphere. For example, you have the right to property, but also the duty not to exploit others with it.

  Definition of Right
  Right is the sum of the conditions under which the choice of one can be united with the choice of another in accordance with a universal law of freedom.
  In other words, Right is about the framework that allows everyone's external freedom to coexist without contradiction.

  The Universal Principle of Right
  Kant formulates it as:
  "Any action is right if it can coexist with everyone's freedom in accordance with a universal law."
  If my action can coexist with everyone's freedom, then anyone who hinders me acts wrongly, since hindrance itself cannot coexist with universal freedom.

In Kant's **definition of Right and its universal principle** at the start of the *Doctrine of Right*. The explanation is as given

What Right Concerns

- **Right** deals only with the **external, practical relation** of one person's actions to another's.

- It is not about wishes, needs, or beneficence (which belong to ethics), but about the relation of **choices**.
- Importantly, Right does not consider the *ends* of choice (what someone wants to achieve), but only the **form**: whether one person's freedom can coexist with another's freedom.

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Distinction from Ethics

- Right does not require that I make the principle of universal freedom my **maxim** (inner motive).
- It only requires that my external actions do not infringe on others' freedom.
- Ethics, by contrast, demands that I act *from duty itself*—that I make the principle my maxim.
- Thus:
  - **Right** = external law of freedom (legality).
  - **Ethics** = internal law of duty (morality).

Kant's Doctrine of Right begins with a precise definition:

- Right is about the external conditions under which freedom can coexist universally.
- Its principle is simple but powerful: act externally so that your freedom can coexist with everyone's freedom.
- Ethics demands inner motivation by duty; Right requires only external conformity.

Kant is laying the foundation for his legal philosophy. Right is not about benevolence or inner motives, but about the external structure that makes universal freedom possible. This principle will guide the entire *Doctrine of Right*, from property and contract to state and international law.

Construction of the Concept of Right

Kant compares the concept of Right to **mathematical construction**:

  - In geometry, we don't derive properties from concepts alone but construct them (e.g., straight lines, perpendiculars).
  - Similarly, Right is "constructed" by imagining **reciprocal coercion** under universal law.

This analogy shows that Right must be exact and formal, like mathematics, not flexible like ethics

Kant is showing that the Doctrine of Right is about enforceable external laws, grounded in reciprocal coercion, and constructed with the same exactness as mathematics. This is why he now moves into the detailed legal doctrines of property, contract, and political authority.

2.2.8.4 KANT ON CONTRACT RIGHT

Kant views contract rights as grounded in moral obligation, not mere utility or self-interest. For him, keeping promises and honoring contracts is a matter of respecting the autonomy and freedom of others, which is central to his *Doctrine of Right*.

A contract, for Kant, is not just about transferring goods or services—it is about **intelligible possession of another's choice**. When someone promises to act, their will becomes an object of rightful possession under law.

Property and Provisional Rights

1. In the **state of nature**, property rights and contracts are only *provisional*—they lack full legitimacy because there is no overarching authority to enforce them.
2. **Civil society** (through the social contract) transforms these provisional rights into *peremptory rights* by institutionalizing them under law. This means contracts only achieve full legitimacy within a lawful state.

2.2.8.5 KANT ON PROPERTY RIGHTS

- A **right to a thing** is instead a right to its **private use**, grounded in a framework of **possession in common with all others**.
- Because:
    1. By my unilateral choice, I cannot impose obligations on others.
    2. Only through the **united choice of all (the juridical community)** can exclusion be legitimate.
    3. Thus, property rights presuppose a system of common possession, from which private exclusion is derived.

Kant shows that **property rights are fundamentally social and juridical**, not natural attachments between people and objects. They depend on a shared framework of law and mutual recognition.

MODEL QUESTIONS

Short answer questions

1.Can virtue be taught? Comment

2.What does it mean to say excercise of virtue itself constituted happiness.

3. What is the distinguishing characteristic of a good man according to a virtue ethicist?

1. Bring out a comparsion between rights and duties.

2. What does it mean to say rights and duties are correlative to other?

3. What does it mean to say duty arises from conflict between higher and lower self.

4. Explain Kants description of duty as categorical imperative.

Essay question

5.Elaborate on the distinction between rights and duties.

6. Bring out the conception of virtue from Platonian and Aristotlean standpoints.